

iZZi Ride

Terms and Conditions

Effective date: July 9, 2024 • <https://izziride.app>

iZZi Ride Inc., a Pennsylvania S corporation (“iZZi Ride”, “we”, “us”) — 807 Durham Place, Bensalem, PA 19020, USA

1. About these Terms

These Terms and Conditions (the “Terms”) govern your access to and use of the iZZi Ride mobile application, the <https://izziride.app> website, and the related services we provide (together, the “Platform”). By creating an account, or by accessing or using the Platform, you agree to be bound by these Terms. If you do not agree, you must not use the Platform.

iZZi Ride is a technology platform that connects people who want to travel along similar routes (“Members”) so they can share a ride, and that lets Members arrange the delivery of parcels between cities. iZZi Ride is not a carrier, a taxi service, or a transport company; it does not provide transportation itself.

2. Eligibility and accounts

- You must be at least 13 years old to use the Platform. If you are under 18, you may use the Platform only with the involvement and consent of a parent or legal guardian, who agrees to be bound by these Terms on your behalf.
- You must register an account with accurate, current and complete information, and keep it up to date. You are responsible for all activity that occurs under your account and for keeping your credentials confidential.
- You may hold only one account. We may suspend or close accounts that contain false information, are duplicated, or are used in breach of these Terms.
- You agree to verify your identity, phone number, or payment details when we ask, and you authorize us to make the checks that we reasonably consider necessary.

3. The services

Through the Platform a Member may publish a trip as a driver, request a trip as a passenger, book a seat in another Member’s trip, or arrange a parcel delivery. Members communicate through the in-app chat and agree the details of each trip or delivery between themselves.

The contract for any ride or delivery is concluded directly between the Members involved. iZZi Ride is not a party to that contract and is not responsible for the conduct of Members, the condition or roadworthiness of any vehicle, or the performance of any trip or delivery.

4. Platform only; no transportation services

iZZi Ride is solely an online technology platform that enables Members to communicate with one another and independently arrange rides, seat-sharing, and parcel-delivery opportunities.

iZZi Ride is not a transportation company, carrier, common carrier, taxi service, ridesharing company, delivery company, freight company, logistics provider, or transportation network company.

iZZi Ride does not own, lease, operate, maintain, control, manage, supervise, dispatch, direct, or provide vehicles, transportation services, drivers, delivery services, or courier services.

All transportation and parcel-delivery services are provided solely by Members acting independently and not on behalf of iZZi Ride.

Nothing in these Terms shall be interpreted as creating an employment relationship, agency relationship, partnership, joint venture, franchise, contractor relationship, or fiduciary relationship between iZZi Ride and any Member.

5. No warranties regarding Members

iZZi Ride does not conduct background checks on all Members and does not guarantee the identity, honesty, trustworthiness, safety, qualifications, licensing status, insurance status, driving ability, criminal history, or suitability of any Member.

Any verification, identity confirmation, document review, profile badge, rating, review, or verification feature provided by iZZi Ride is offered solely for informational purposes and shall not be interpreted as an endorsement, certification, recommendation, guarantee, or warranty of any Member.

Members are solely responsible for evaluating whether another Member is appropriate, safe, and trustworthy.

6. Driver and passenger obligations

As a driver, you confirm and agree that:

- You hold a valid driver's licence and are legally entitled to drive the vehicle you use for the trip.
- The vehicle is roadworthy, properly maintained, registered, and covered by valid insurance that is adequate for carrying passengers and any agreed parcels.
- You will only offer trips for journeys you genuinely intend to make for your own reasons, and you will not seek to profit from them beyond sharing actual costs.
- You will drive responsibly, obey all traffic and safety laws, and never drive under the influence of alcohol, drugs, or any substance that impairs your ability.

As a passenger, you confirm and agree that you will be ready at the agreed time and place, behave respectfully toward the driver and other passengers, and pay the agreed amount for the seat you book.

7. Bookings, prices and payments

- Prices for seats and deliveries are set within the Platform. The amount payable, including any service fee or commission charged by iZZi Ride, is shown before you confirm a booking.
- Payments are processed by our third-party payment provider, Stripe, Inc. By making a payment you agree to Stripe's terms and authorize the charge to your selected payment method. We do not store your full card details.

- iZZi Ride may charge a service fee for the use of the Platform. Where a fee applies, it is non-refundable except as required by law or as expressly stated in these Terms.
- A booking is only confirmed once the required payment or driver acceptance has been completed in the app. Until then the request is pending and may expire.

8. Cancellations and refunds

Either Member may cancel a booking through the Platform. Unless a different rule is shown at the time of booking, the following applies:

- **Passenger cancels more than 24 hours before departure** — full refund of the seat or delivery price. The service fee is non-refundable.
- **Passenger cancels between 24 hours and 1 hour before departure** — 50% refund of the seat or delivery price. The service fee is non-refundable.
- **Passenger cancels less than 1 hour before departure, or does not show up** — no refund.
- **Driver cancels a confirmed trip, or does not show up** — the passenger receives a full refund, including the service fee.

Refunds are issued to your original payment method through our payment provider and may take several business days to appear. Where mandatory consumer-protection law gives you stronger refund rights, those rights are not affected.

9. Parcel deliveries

Members may agree to carry parcels between cities. The sender is responsible for the contents of a parcel and for ensuring they are lawful to send and carry. A separate Prohibited Items Policy lists items that must never be sent or carried and forms part of these Terms.

You must not send, and a driver must not knowingly carry, any item that is unlawful to possess or transport, or that is prohibited by applicable federal or state law, including but not limited to:

- illegal drugs, controlled substances, and drug paraphernalia;
- firearms, ammunition, explosives, fireworks, and other weapons;
- flammable, corrosive, toxic, radioactive, compressed-gas, or otherwise hazardous materials;
- stolen, counterfeit, or fraudulently obtained goods;
- live animals, human remains, and biological, medical, or hazardous waste;
- perishable goods that are not safely and securely packaged;
- cash, negotiable instruments, or other valuables where their carriage is restricted by law;
- any other item the possession or transport of which would violate applicable law.

iZZi Ride does not inspect parcels and is not liable for their contents, loss, or damage. Members are encouraged to agree the description, condition, and value of a parcel in advance through the in-app chat.

10. Acceptable use

You agree not to use the Platform to:

- break any law or infringe the rights of others;
- harass, threaten, defraud, or discriminate against any person;

- post false, misleading, offensive, or unlawful content;
- operate a commercial transport business, or solicit Members off-platform to avoid fees;
- interfere with, scrape, reverse-engineer, or attempt to gain unauthorized access to the Platform or its systems.

Conduct on the Platform and during trips and deliveries is also governed by our separate Safety Policy, which forms part of these Terms.

11. Content

You retain ownership of the content you submit (such as your profile, photos, messages and reviews). You grant iZZi Ride a worldwide, non-exclusive, royalty-free licence to host, display and use that content as needed to operate and promote the Platform. You are responsible for the content you submit and confirm you have the right to share it.

12. Ratings and reviews

Members may rate and review each other after a trip. Reviews must be honest, relevant, and free of unlawful or abusive content. We may remove reviews that breach these Terms, but we are not obliged to monitor them.

13. Assumption of risk and release

Members acknowledge and agree that participation in any ride, transportation arrangement, meeting with another Member, parcel delivery, exchange of goods, or other activity arranged through the Platform involves inherent and significant risks.

Such risks include, without limitation, motor-vehicle accidents, injury, death, assault, theft, fraud, criminal acts, property damage, weather-related events, delays, traffic conditions, loss of parcels, misconduct by Members, and other foreseeable or unforeseeable events.

By using the Platform, each Member voluntarily and knowingly assumes all risks associated with the use of the Platform and any interactions with other Members.

To the fullest extent permitted by law, Members release, waive, and discharge iZZi Ride, its owners, officers, directors, employees, contractors, affiliates, and agents from any and all claims, liabilities, damages, losses, costs, and expenses arising from or related to any ride, parcel delivery, Member interaction, accident, injury, death, property damage, theft, delay, dispute, or other event occurring before, during, or after use of the Platform.

14. Disclaimers and limitation of liability

The Platform is provided “as is” and “as available”. To the maximum extent permitted by law, iZZi Ride disclaims all warranties, express or implied, including fitness for a particular purpose and non-infringement. We do not warrant that the Platform will be uninterrupted, secure, or error-free.

To the maximum extent permitted by law, iZZi Ride is not liable for any indirect, incidental, special, consequential, or punitive damages, or for any loss arising from the acts or omissions of Members, the conduct of any trip, the condition of any vehicle, or the contents of any parcel.

In no event shall iZZi Ride's aggregate liability exceed the greater of (a) USD \$100 or (b) the total service fees paid by the Member to iZZi Ride during the twelve (12) months immediately preceding the event giving rise to the claim.

15. Indemnity

You agree to indemnify and hold harmless iZZi Ride Inc. and its officers, employees and agents from any claim, loss or expense (including reasonable legal fees) arising out of your use of the Platform, your breach of these Terms, or your violation of any law or the rights of a third party.

16. Binding arbitration; class action waiver

Please read this section carefully. It affects your legal rights and requires most disputes to be resolved by individual binding arbitration instead of in court before a judge or jury.

Any dispute, claim or controversy arising out of or relating to the Platform or these Terms shall be resolved exclusively through final and binding arbitration administered by the American Arbitration Association (AAA) under its applicable rules, rather than in court — except that either party may bring an individual claim in a small-claims court that has jurisdiction. This arbitration agreement is governed by the Federal Arbitration Act.

Class action and jury waiver. Members waive any right to participate in a class action, collective action, representative action, or jury trial. All disputes must be brought in the Member's individual capacity, and not as a plaintiff or class member in any purported class, collective, or representative proceeding. The arbitrator may not consolidate more than one person's claims.

If any portion of this section is found to be unenforceable, the remainder shall remain in effect; however, if the class-action waiver is found unenforceable as to a particular claim, that claim (and only that claim) shall be severed and brought in a court of competent jurisdiction.

17. Suspension and termination

You may stop using the Platform and delete your account at any time from within the app. We may suspend or terminate your access if you breach these Terms, create risk for other Members, or where required by law. Sections that by their nature should survive termination will continue to apply.

18. Governing law and forum

Subject to the binding arbitration provisions above, these Terms are governed by the laws of the Commonwealth of Pennsylvania, USA, without regard to its conflict-of-laws rules. For any dispute that is not subject to arbitration, and for any proceeding to compel arbitration or to enforce an arbitration award, you agree that the state and federal courts located in Pennsylvania have exclusive jurisdiction, and you consent to the personal jurisdiction of those courts.

19. Changes and contact

We may update these Terms from time to time. We will post the updated version with a new effective date and, where appropriate, notify you. Continued use of the Platform after changes take effect means you

accept the updated Terms.

Questions about these Terms can be sent to support@izziride.com or by post to iZZi Ride Inc., 807 Durham Place, Bensalem, PA 19020, USA.

This document is provided by iZZi Ride Inc.. For questions, contact support@izziride.com. Last updated July 9, 2024.